

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Increase of Rent and Mortgage Interest (Restrictions) Act, 1920	10 & 11 Geo. 5. c. 17.
Rent and Mortgage Interest Restrictions (Amendment) Act, 1933	23 & 24 Geo. 5. c. 32.
Rent and Mortgage Interest Restrictions Act, 1939	2 & 3 Geo. 6. c. 71.
Rent of Furnished Houses Control (Scotland) Act, 1943	6 & 7 Geo. 6. c. 44.
Furnished Houses (Rent Control) Act, 1946	9 & 10 Geo. 6. c. 34.
Landlord and Tenant (Rent Control) Act, 1949	12, 13 & 14 Geo. 6. c. 40.
Reserve and Auxiliary Forces (Protection of Civil Interests) Act, 1951	14 & 15 Geo. 6. c. 65.

CHAPTER 41

An Act to amend the Bastardy Laws Amendment Act, 1872, by increasing to thirty shillings the maximum weekly payment in respect of a child under an affiliation order, and, in the case of a child engaged in a course of education or training, to extend until the child reaches the age of twenty-one the period for which under that Act payments may be continued under an affiliation order or for which under the Illegitimate Children (Scotland) Act, 1930, the parents are under obligation to provide aliment; and for purposes connected therewith. [1st August, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The maximum weekly payment which the putative father of an illegitimate child may be required by an affiliation order to make in respect of the child shall be thirty shillings. Increase in sums payable under affiliation orders.

(2) Accordingly in section four of the Bastardy Laws Amendment Act, 1872 (as originally enacted), "thirty shillings" shall be substituted for "five shillings", and section two of the Bastardy Act, 1923 (which increased the maximum weekly payment to twenty shillings), is hereby repealed.

(3) An affiliation order may be varied under subsection (3) of section thirty of the Criminal Justice Administration Act, 1914, so as to require the making of weekly payments of more than

twenty shillings (though not more than thirty shillings), notwithstanding that the order was made before the commencement of this Act.

Continuance
of payments
under affilia-
tion orders in
certain cases.

2.—(1) The power under subsection (3) of section thirty of the Criminal Justice Administration Act, 1914, to vary or revive an affiliation order shall, notwithstanding anything in section five of the Bastardy Laws Amendment Act, 1872, include power to vary or revive it in accordance with the following provisions of this section.

(2) If, upon the application of the mother of the child in respect of whom the affiliation order was made, it appears to the court that the child is or will be engaged in a course of education or training after attaining the age of sixteen years, and that it is expedient for that purpose for payments to be made under the order after the child attains that age, then subject to the two next following subsections the court may by order direct that payments shall be so made for such period, not exceeding two years from the date of the order, as may be specified in the order.

(3) Subject to the next following subsection, the period specified in an order made by virtue of the foregoing provisions of this section may from time to time be extended by a subsequent order so made, but shall not in any case extend beyond the date when the child attains the age of twenty-one.

(4) Notwithstanding anything in the foregoing provisions of this section or in any order made by virtue of this section, payments under an affiliation order shall not, after the child has attained the age of sixteen, be required—

(a) to be made either—

(i) in respect of any period during which the child is detained in an approved school; or

(ii) subject to the next following subsection, in respect of any period during which the child is in the care of a local authority under section one of the Children Act, 1948, or there is in force an order under the Children and Young Persons Act, 1933, committing the child to the care of a fit person;

(b) to be made to any person other than the mother of the child.

(5) Sub-paragraph (ii) of paragraph (a) of the last foregoing subsection shall not apply to any part of such a period as is there mentioned during which the child is permitted to reside with his mother.

(6) Paragraph (b) of subsection (4) of this section shall not be taken to affect any provision for payments to the child's mother

being made through the collecting officer of a court (or, until the coming into force of subsection (2) of section twenty-one of the Justices of the Peace Act, 1949, through some other person).

(7) Any reference in this section to a child's mother shall be taken as including a reference to any person for the time being having the custody of the child either legally or by any arrangement approved by the court, except that it shall not include a local authority in whose care the child is under section one of the Children Act, 1948, or a person to whose care the child is committed by an order under the Children and Young Persons Act, 1933.

3.—(1) Notwithstanding the limitation imposed by section one of the Illegitimate Children (Scotland) Act, 1930, on the duration of the obligation of the mother and of the father of an illegitimate child to provide aliment for the child, if, on the application of any person who is entitled to the custody of an illegitimate child in respect of whom a decree of affiliation and aliment has been granted, whether such person is the father or the mother of the child or is a third party, it appears to the court that the child is or will be engaged in a course of education or training after attaining the age of sixteen and that it is expedient for that purpose for there to be a liability under the decree to make payments in respect of aliment after the child attains that age, then, subject to the two next following subsections, the court may by order direct that there shall be a liability as aforesaid for such period, not exceeding two years from the date of the order, as may be specified in the order.

Continuance
of liability to
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(2) Subject to the next following subsection, the period specified in an order made by virtue of the foregoing provisions of this section may from time to time be extended by a subsequent order so made, but shall not in any case extend beyond the date when the child attains the age of twenty-one.

(3) Notwithstanding anything in the foregoing provisions of this section or in any order made by virtue of this section, payments under a decree of affiliation and aliment shall not, after the child has attained the age of sixteen, be required—

(a) to be made either—

(i) in respect of any period during which the child is detained in an approved school; or

(ii) subject to the next following subsection, in respect of any period during which the child is in the care of a local authority under section one of the Children Act, 1948, or there is in force an order under the Children and Young Persons (Scotland) Act, 1937, committing the child to the care of a fit person;

(b) to be made to any person other than the father or the mother of the child or a person entitled to the custody of the child.

(4) Sub-paragraph (ii) of paragraph (a) of the last foregoing subsection shall not apply to any part of such a period as is there mentioned during which the child is permitted to reside with his father or mother or a person entitled to the custody of him.

(5) The court shall have power to recall or vary an order made by virtue of subsection (1) or subsection (2) of this section.

(6) Any reference in this section to a person entitled to the custody of a child shall not include a local authority in whose care the child is under section one of the Children Act, 1948, or a person to whose care the child is committed by an order under the Children and Young Persons (Scotland) Act, 1937.

Extension of
Chapter VII
of Part VII of
the Income
Tax Act, 1952.

4. Chapter VII of Part VII of the Income Tax Act, 1952 (which requires among other things that certain small maintenance payments shall be made without deduction of tax), shall have effect as if an affiliation order and a decree of affiliation and aliment were included in the orders mentioned in paragraph (a) of subsection (2) of section two hundred and five (which specifies the cases where the age limit for the application of the Chapter is to be twenty-one, and not sixteen, years and the limit on the amount of the weekly payment is to be thirty, and not twenty, shillings).

Short title,
extent and
commence-
ment.

5.—(1) This Act may be cited as the Affiliation Orders Act, 1952.

(2) Nothing in this Act extends to Northern Ireland.

(3) This Act shall come into force on the expiration of one month beginning with the date of its passing.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Bastardy Laws Amendment Act, 1872	35 & 36 Vict. c. 65.
Criminal Justice Administration Act, 1914 ..	4 & 5 Geo. 5. c. 58.
Bastardy Act, 1923	13 & 14 Geo. 5. c. 23.
Illegitimate Children (Scotland) Act, 1930 ...	20 & 21 Geo. 5. c. 33.
Children and Young Persons Act, 1933	23 & 24 Geo. 5. c. 12.
Children and Young Persons (Scotland) Act, 1937	1 Edw. 8. & 1 Geo. 6 c. 37.
Children Act, 1948	11 & 12 Geo. 6. c. 43.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6 c. 101.
Income Tax Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 10.